

Application Ref No: 25/01315/FUL
Recommendation: Refused
Decision Type: Delegated Decision
Delegated Report Type: Part 1A
Case Officer: Hayley Byrne

Principal Considerations

The main issues in considering this proposal are:

- Principle
- Matters relating to size, scale, design and impact upon the character and appearance of the area
- Impact on the setting of the adjacent listed building
- Impact on neighbouring properties
- Highway considerations
- Impact on trees considered to be of high amenity value

Details of Applications

Proposed detached dwelling and garage

Location and Site Characteristics

Land adjacent 3 Brickfield Cottages, East Cowes Road, East Cowes Isle of Wight PO32 6NH

The site is located within a semi-rural residential street scene, whilst the immediate area consists of only a terrace of three listed cottages, further along the road to the south-west, buildings become more regular consisting of a mixture of houses and bungalows set well back from the road. In view of the above East Cowes Road appears divided in terms of its character, the area of the road where the application site sits is very verdant in character with mature trees, hedging and open fields as well as very little lighting, the only buildings in view being the terrace of three Grade II listed cottages. Further up the road in a south westerly direction, the character is one of regular residential properties, albeit set back from the road with good sized front gardens.

The application site is a large irregularly shaped piece of land with maximum measurements of 46 x 34 metres. The land sits to the south-west of 3 Brickfield Cottages, a listed building and appears to have originally formed part of the garden of this dwelling. The site is well screened by natural growth, including some mature trees and fencing. There is an existing vehicular access on the roadside boundary.

The site was previously occupied by a caravan that sat adjacent to the road and a large shed. Both of which appear to have been removed, although the submitted documents refer to the caravan being occupied for the duration of the building work. There is also an existing garage at the rear of the plot which would be removed and replaced with a garage of a slightly larger footprint but in a similar position, the submitted information also advises that this structure would have a small amount of accommodation within the roof space, in order to provide a home office.

Constraints

SPA Buffer Zone

The site is located adjacent to a terrace of three Grade II listed cottages.

Relevant History

21/02386/FUL	Removal of caravan; Proposed dwelling (revised plans) (readvertised application)	Granted	08.08.2022
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National Policy

National Planning Policy Framework (NPPF)

Development Plan Policy

Island Plan Core Strategy

SP1 - Spatial Strategy
SP2 - Housing
SP7 - Travel
DM2 - Design Quality for New Development
DM3 - Balanced Mix of Housing
DM4 - Locally Affordable Housing
DM11 - Historic and Built Environment
DM12 - Landscape, Seascape, Biodiversity and Geodiversity
DM17 - Sustainable Travel

Solent Special Protection Area / Solent Recreation Mitigation Strategy

The application site is located within the identified Solent Special Protection Area buffer zone and the Solent Recreation Mitigation Strategy is being used by the Isle of Wight Council in terms of requiring mitigation for impacts on the Solent Special Protection Area, as a result of increased recreational pressure from certain types of residential development that are located within 5.6km of the designated Solent Special Protection Areas.

Isle of Wight Council Position Statement – Nitrates

The IOW Council expects all development that results in a net increase of residential units, including tourist units to demonstrate that the development would not cause harm to the Solent protected sites as a result of drainage resulting in a net increase in nutrients.

Supplementary Planning Documents

Affordable Housing Contributions SPD

The Affordable Housing Contributions Supplementary Planning Document (SPD) was adopted by the Isle of Wight Council at its Executive meeting on 15 September 2015 and came into force on 24 September 2015 with a revised Affordable Housing SPD setting out the LPA's updated proposed approach towards the collection of financial contributions for affordable housing through the planning process adopted in March 2017.

Guidelines for Parking Provision as Part of New Developments SPD

The Guidelines for Parking Provision as Part of New Developments Supplementary Planning Document (SPD) was adopted by the Isle of Wight Council at its Executive meeting on 12 January 2017 and came into force on 23 January 2017.

Refuse and Recycling SPD

The Guidelines for Recycling and Refuse Storage in New Developments Supplementary Planning Document (SPD) was adopted by the Isle of Wight Council at its Executive meeting on 12 January 2017 and came into force on 23 January 2017.

Consultee & Third Party Comments

Internal

The Planning Arboricultural Officer raises no objection subject to a condition.

External

Island Roads, Highway Engineers raise no objection subject to the imposition of conditions to preserve highway safety.

Third Party

No third-party representations have been received.

Evaluation

Principle

This is an established residential area that is reasonably well served by public transport links, albeit there would be a short walk along East Cowes Road to the bus route, in addition the site is located immediately adjacent to one of the cycle routes out of Newport. Despite the site not being within a wholly sustainable location, it would nonetheless offer an alternative means of travel other than the car and therefore officers are satisfied that this is an appropriate location for new residential development subject to the detail of the proposal.

Officers note that planning consent has previously been granted for a dwelling on this site and whilst this consent expired shortly before this current application was made, the policies and principles considered at the time of that consent remain in place and there have been no significant changes on site.

In light of the above, officers consider that the application site forms an appropriate location for new residential development and therefore, the broad principle of development within this location is considered acceptable subject to all other detailed material planning considerations being acceptable, as set out below and the proposal being in accordance with the relevant policies of the Core Strategy.

Matters relating to size, scale, design and impact upon the character and appearance of the area

Matters relating to size, scale, location, design and impact on the character of the area are assessed against the established planning policy framework as set out earlier in this report, with particular regard to policy DM2, which encourages proposals to work with existing site constraints, provide integrated solutions, advocate good design quality, and seek to ensure that development proposals enhance the established character and appearance of the surrounding environment.

The plot sits in an area of East Cowes Road that is semi-rural in character with a great deal of natural growth and little street lighting

During negotiations for the previously approved dwelling great care was taken to secure a modest building that would not compete with the small-scale nature of the adjacent terrace of listed cottages. The submitted drawings show that the proposed dwelling would be significantly larger than the previously approved bungalow in both footprint and height, and would take the form of a large pitch roof barn conversion with a prominent glazed feature forming an entrance, as well as a large open cart barn type structure with additional accommodation above. The dwelling would be finished in black stained timber cladding above a Purbeck stone plinth with a natural slate roof. Officers acknowledge a wide range of materials in the wider area, however the use of these materials within the context of the listed building would result in an alien and incongruous addition which would jar with the ornate detailing of the cottages. Whilst officers acknowledged that an attempt has been made to break up the perceived mass of the dwelling by adding a smaller, single storey section to the side, this is not considered to be sufficient to reduce the harm of the proposed structure on the surrounding area and setting of the adjacent listed buildings.

As such officers consider the proposal to be contrary to policies DM2 and DM11 of the Island Plan Core Strategy in this respect.

Impact on the setting of the adjacent listed building

The adjacent terraces of properties known as Brickfield Cottages are Grade II listed. These were built in 1853 and were designed by the Prince Consort to house workers employed by the adjoining Queens brickyard. They are gothic in style and built of red brick with stone dressings under slate roofs.

This terrace is modest in scale, with the first floor accommodated within the roof space. The buildings have a domestic appearance and although now located on an isolated road of residential development, East Cowes Road at one time provided the main route between Newport and East Cowes.

The proposed building would be visible within the context of these listed cottages, with the site appearing to have previously been the side garden of one of them. As outlined above, the proposal would appear as a converted barn with a finish of black cladding upon a plinth of natural/white stone walls under a slate roof. Whilst farming is associated with this area, the proposal's proximity to the workers cottages would harm their setting, which is an important contributor to their significance. The cottages form part of Prince Albert's model farms and workers' cottages as part of his Osborne estate, to promote modern farming technology and improved living conditions for the labouring classes. These developments were significant examples of nineteenth century social and agricultural innovation. In this case, the cottages are isolated from a farm, and

this isolation is an important part of their setting. The proposal has a contrived appearance that would confuse this setting, creating a visual relationship with a type of building that was never present in this location. Its presence would impact upon the understanding and significance of these buildings and their relationship with the whole estate.

Taking into consideration the NPPF requires great weight to be afforded to the conservation of listed buildings (designated heritage assets), and the Council's duties under Section 66 of the Planning (Listed Buildings & Conservation Areas) Act 1990 (as amended) to have special regard to the desirability of preserving listed buildings and their settings, officers consider the proposal would have a harmful impact on the setting of the listed building. The proposal would also fail to be in accordance with policies DM2 (Design Quality for New Development) and DM11 (Historic and Built Environment) of the Island Plan Core Strategy, which reflect the need to conserve or enhance designated heritage assets.

Impact on neighbouring properties

The only dwelling that would be affected by the proposal would be 3 Brickfield Cottages, there would be a generous separation distance between this dwelling and the proposed building as well as intervening natural growth. Whilst a side facing first floor window is proposed, due to the orientation of the proposed dwelling this would look to the rear of the neighbouring garden only, however as previously advised there is a great deal of natural growth which would limit views.

Other dwellings within East Cowes Road are a significant distance away from the site and on the opposite side of the road so would not be affected in any way.

As such officers consider impact on neighbouring dwellings to be minimal and in accordance with policy DM2 of the Island Plan Core Strategy in this respect.

Highway considerations

The existing vehicular access to the site would be remodelled in order to provide better visibility and a greater set back of the existing gate. Whilst the Highway Engineer acknowledges that visibility would still be less than normally required, given that both the proposed visibility and the set back of the gates would offer a betterment when compared to the existing situation, they raise no objection, subject to conditions.

The proposed site layout would provide an acceptable level of parking as well as a turning area for a two bedroomed dwelling, in compliance with the Guidelines for Parking Provision as Part of New Developments SPD.

As such impact on highway safety is considered to be acceptable and in accordance with Policy DM2 of the Island Plan Core Strategy.

Impact on trees considered to be of high amenity value

Several non-protected trees have already been removed from the site, prior to the previous application having been made. The Planning Arboricultural Officer has recommended a condition requiring details of trees to be planted in order to mitigate these losses as well as adhering to the requirements of the submitted arboricultural method statement in order to protect remaining trees, subject to this condition the Councils Tree Officer considers the proposal to be acceptable and in accordance with policy DM12 of the Island Plan Core Strategy.

Other matters

Solent Special Protection Area Mitigation

The Bird Aware Solent Strategy sets out the mitigation for impacts on the Solent Special Protection Area as a result of increased recreational pressure from certain types of residential development that are located within 5.6km of the designated Solent Special Protection Areas. The applicant has entered into a legal agreement which shows that they would make the relevant monetary contribution to mitigate the impact of the development on the Solent Special Protection Area.

Nutrients and effects on the Southampton and Solent Waters Special Protection Area (SPA)

In the light of recent European Court of Justice decisions relating to Ecology and potential harmful effects on the Southampton and Solent Waters Special Protection Area (SPA) as a result of nitrate enrichment. The agent has confirmed that the dwelling would connect to the existing sewerage system which would be

treated at the Sandown wastewater treatment and discharged into the English Channel as opposed to the Solent. This would accord with the Council's Position Statement in this matter.

Affordable Housing

The Council adopted the Affordable Housing Contributions Supplementary Planning Document (revised one on 9 March 2017). The applicant has entered into a legal agreement which shows that the applicant would make the relevant monetary contribution at the appropriate stage as per this SPD.

Biodiversity Net Gain

The Environment Act 2021 includes a requirement for Biodiversity Net Gain (BNG), a concept that aims to ensure that developers leave the environment in a measurably better state compared to the pre-development baseline. This has applied to planning applications for major development from January 2024 and for other development (not including householder development) from 2nd April 2024. Any planning application submitted after those dates would require the submission of a biodiversity gain plan, which would need to be undertaken in accordance with Natural England guidance and include a biodiversity metric, which would compare the baseline for the site with the need for 10% Biodiversity Net Gain, unless the proposed development falls within one of the exemption categories.

In this instance the proposal would be exempt as the agent has advised that the proposed development would be a self-build. They have submitted the relevant proforma advising that the applicant would be building the dwelling himself and residing in it for at least three years.

Conclusion

Having given due weight and consideration to all comments received in relation to this application and for the reasons set out above, the Local Planning Authority consider that the development would result in a dwelling of an inappropriate scale, height, design and appearance that would have an unacceptable impact on the surrounding area and the adjacent Grade II listed cottages and is therefore contrary to policies DM2, DM11 and DM12 of the Island Plan Core Strategy.

The application is therefore recommended for refusal

Reason for refusal

- 1 The proposed development would result in a dwelling of an inappropriate scale, height, design and appearance, adversely impacting upon the character of the area and the historical setting and significance of the adjacent listed terrace. The development would therefore be contrary to the aims of Policies DM2 (Design Quality for New Development), DM11 (Historic and Built Environment) and DM12 (Landscape, Seascape, Biodiversity and Geodiversity) of the Island Plan Core Strategy, and the objectives of the National Planning Policy Framework and Section 66 of the Planning (Listed Buildings & Conservation Areas) Act 1990.

Biodiversity Net Gain (Paragraph 13 of Schedule 7A to the Town and Country Planning Act 1990 (biodiversity gain condition))

Based on the information provided as part of this application, the Isle of Wight Council as local planning authority consider that this permission does not require a Biodiversity Gain Plan to be approved before development commences because the following statutory exemption or transitional arrangement applies:

The proposed development is Self / Custom build development

For more information relating to Biodiversity Net Gain, applicants are advised to consider the following sources of information:

Article 35 of the Town and Country Planning (Development Management Procedure) (England) Order 2015: <https://www.legislation.gov.uk/uksi/2015/595/article/35/made>

Paragraph 13 of Schedule 7A of the Town and Country Planning Act 1990: <https://www.legislation.gov.uk/ukpga/2021/30/schedule/14/enacted>

Part 2 of the Biodiversity Gain (Town and Country Planning) (Modifications and Amendments) (England) Regulations 2024: <https://www.legislation.gov.uk/uksi/2024/50/part/2/made>

Overall Biodiversity Gain Plan: <https://www.gov.uk/guidance/biodiversity-net-gain#para58>

Phase Biodiversity Gain Plan: <https://www.gov.uk/guidance/biodiversity-net-gain#para60>

Biodiversity net gain: <https://www.iow.gov.uk/environment-and-planning/planning/ecology/biodiversity-net-gain/>

Informative(s):-

1. ARTICLE 35 - WORKING WITH THE APPLICANT

In accordance with paragraphs 39 of the NPPF, the Isle of Wight Council takes a positive approach to development proposals focused on solutions to secure sustainable developments that improve the economic, social and environmental conditions of the area. Where development proposals are considered to be sustainable, the Council aims to work proactively with applicants in the following way:

- o The IWC offers a pre-application advice service
- o Updates applicants/agents of any issues that may arise in the processing of their application and, where there is not a principle objection to the proposed development, suggest solutions where possible

In this instance the application was not considered to be a sustainable form of development and therefore, no further discussions were undertaken.

Part 1 Authorisation

Signed: _____

Name: Sarah Wilkinson

Date: 07/11/2025